

Representation / Objection Regarding Non-Service of Individual Notice and Non-Disclosure of Revised Sanctioned Plans of the project GRANDSTAND sector 99A ,Gurugram

5 messages

Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

17 May 2026 at 13:39

To: Rahul Mangla <rahul.mangla@homekraft.in>, Getamber Anand <getamber@atsgreens.com>, Grand Stand Customercare <grandstand.customercare@homekraft.in>, getamberanand@atsgreen.com, email@atsgreens.com, Ats Pratik Verma Hk <prateek.verma@homekraft.in>, udaivir.anand@atsgreen.com, getamber@atsgreen.com
Cc: soibal.gupta@outlook.com, Soibal Gupta <adv.soibal.gupta@gmail.com>

From:

Mr. Vijyant Agarwal

Allottee / Complainant

Unit No. 3051, Tower No. 03, Type-D

ATS Grandstand Phase-I, Sector 99A, Gurugram

Co-allottee: Mrs. Vineeta Agarwal

Address: House No. 07, Type V, Netaji Subhas University of Technology, Sector-03, Dwarka, New Delhi-110078

Email: [Prof.Vijyant.Agarwal@gmail.com]

Mobile: [9899308574]

To,

The CMD/Competent Authorities

M/s Hasta Infrastructure Pvt. Ltd. / ATS Realworth Pvt. Ltd. / Homekraft Infra Pvt. Ltd.

ATS Tower, Plot No. 16, Sector-135, Noida

Also at: Project Site Office, ATS Grandstand, Sector 99A, Gurugram

CC:

1. The Senior Town Planner, Gurugram, HSVP Complex, Sector-14, Gurugram, Haryana
2. The Director, Town & Country Planning, Haryana, Chandigarh
3. Haryana Real Estate Regulatory Authority, Gurugram

Subject: Non-service of individual notice, non-availability of complete sanctioned/revised plans on the project website, and reservation of objection / non-consent regarding proposed change of developer and revision in building plans — ATS Grandstand Phase-I, Sector 99A, Gurugram, Unit No. 3051

References

1. My allotment / Agreement to Sell dated 25.10.2018 for Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram.
2. HARERA, Gurugram Order dated 18.04.2024 in Complaint No. 4463 of 2021, *Vijyant Agarwal & Anr. v. ATS Realworth Pvt. Ltd.*
3. DTCP in-principle approval bearing Memo No. LC-2806/JE(AK)/2025/46794 dated 10.12.2025 regarding change of developer from Hasta Infrastructure Pvt. Ltd. to M/s Homekraft Infra Pvt. Ltd. in respect of Licence No. 37 of 2013 dated 03.06.2013.
4. Public notice concerning the proposed change of developer, referring to the website www.gurgaonsector99a.com.

Respected Sir/Madam,

I am an existing allottee of Unit No. 3051, Tower No. 03, Type-D in the project ATS Grandstand Phase-I, Sector 99A, Gurugram. I am constrained to place on record serious objections and reservations regarding the manner in which the proposed change of developer and the revision in building plans are being processed and communicated to the allottees.

I have come to know from documents/publicly circulated material that the project is undergoing important changes, including change of developer and revision in building plans. However, I have not been personally or individually informed by the company through email, registered post, speed post, courier, or any proper allottee-specific communication regarding:

1. the proposed change of developer from Hasta Infrastructure Pvt. Ltd. to M/s Homekraft Infra Pvt. Ltd.;
2. the revised building plans and the changes proposed in comparison with the earlier sanctioned plans;
3. the impact of such changes on my unit, tower, common areas, amenities, car parking, access, layout, specifications, completion schedule, possession, and statutory approvals; and
4. the time period and manner in which objections/observations/consent are required to be submitted.

The DTCP in-principle approval for change of developer itself required that all allottees be informed about the proposed change through newspaper publication, website publication, and also through their email IDs, so that they may submit objections within the stipulated period. In addition, the public notice/communication refers to www.gurgaonsector99a.com as the website where relevant documents are stated to be available. Further, the notices issued to another allottee states that the permission dated 04.05.2026, along with the copy of earlier sanctioned and revised plans showing changes, has been uploaded on the said web portal.

However, on checking the said website, I have not found complete, clear, downloadable, and verifiable information/documents as represented, including the earlier sanctioned plans and the revised plans showing changes. In the absence of such complete disclosure, no allottee can meaningfully examine the proposed changes or submit an informed objection/consent.

It is specifically recorded that I have not received any individual communication from the company regarding the aforesaid changes, despite the company having my allottee details, email ID, address and complete records, including records arising from the earlier HARERA proceedings. Therefore, any attempt to treat non-response, silence, or lack of objection from my side as “consent”, “deemed consent”, or “no objection” would be wholly incorrect, unfair, and unacceptable.

I further state that the earlier HARERA Order dated 18.04.2024 in Complaint No. 4463 of 2021 has already recognised my status as complainant/allottee and has issued directions concerning pre-EMI/EMI, disclosure of project status, date of possession, and escrow account details. Therefore, the company is already under a heightened obligation to deal with my allotment transparently and to disclose all project-related information affecting my rights.

Accordingly, I call upon you to provide the following within 7 days of receipt of this letter:

1. A complete copy of DTCP permission bearing Memo No. ZP-938-II/SD(RD)/2026/15567 dated 04.05.2026.
2. A complete copy of the earlier sanctioned building plans/layout plans applicable to the project.
3. A complete copy of the revised building plans/layout plans showing all proposed changes.
4. A comparative statement showing, item-wise, the difference between the earlier sanctioned plans and the revised plans.
5. A tower-wise and unit-wise impact note specifically for Tower No. 03 and Unit No. 3051.
6. Details of any change in FAR, density, number of units, tower layout, height, basement, parking, green area, club/community facilities, fire safety arrangements, approach road, services, utility areas, common areas, lifts, specifications, possession schedule, and occupation/completion approvals.

7. Copy of all applications, approvals, permissions, undertakings and affidavits filed before DTCP/HRERA/other authorities in relation to the change of developer and revised building plans.
8. Proof of individual notice allegedly issued to me, if any, including date, mode of service, email delivery record, postal/courier receipt and the exact contents of such notice.
9. Written confirmation that no silence/non-response from me shall be treated as consent/no-objection.
10. Written confirmation that a fresh period of 30 days for submitting objections/observations shall be counted only from the date on which complete documents are actually supplied to me individually.
11. Written confirmation that all existing rights, claims, liabilities, obligations, timelines, pre-EMI/EMI commitments, possession obligations, and obligations arising out of the HARERA Order dated 18.04.2024 shall remain fully binding on the existing and proposed developer/promoter.
12. Updated status of construction, completion/occupation certificate, expected date of possession, and latest escrow account details including credit/debit records, as already directed in the HARERA Order dated 18.04.2024.

Until the above documents and clarifications are supplied, my objection/reservation is hereby expressly recorded. I do not consent to any proposed change of developer, revision in building plans, or any other project alteration that affects or may affect my rights, my unit, the agreed specifications, the project amenities, the possession schedule, or any obligation of the promoter/developer.

This letter may also be treated as a formal request to the company to immediately place complete, clear, readable and downloadable documents on www.gurgaonsector99a.com, including the earlier sanctioned plans, revised plans, approval memo, comparative chart, and allottees' notice package. Merely making a general statement that documents have been uploaded, without actually making the complete documents available, cannot constitute proper disclosure.

You are requested to respond in writing by email and by post. In case no satisfactory response is received within 7 days, I shall be constrained to place the matter before the Senior Town Planner, DTCP Haryana, HRERA Gurugram and other competent authorities, including for recording that the allottee was not individually informed and that the objection/consent process was not conducted in a fair, transparent and legally valid manner.

This letter is issued without prejudice to all my rights, remedies, claims and contentions in law and equity, including those arising from the Agreement to Sell, the Real Estate (Regulation and Development) Act, 2016, the HARERA Order dated 18.04.2024, and all applicable DTCP policies/approvals.

Yours faithfully,

Vijyant Agarwal

Allottee / Complainant

Unit No. 3051, Tower No. 03, Type-D

ATS Grandstand Phase-I, Sector 99A, Gurugram

Enclosures:

1. Copy of HARERA Order dated 18.04.2024, Complaint No. 4463 of 2021
2. Copy of DTCP in-principle approval dated 10.12.2025, if available
3. Copy/screenshot of public notice / website reference



WEBPAGE_CHANGE_OF_DEVELOPER.jpeg
139K

 **WEBPAGE_Change_of_developer_ATS.pdf**
409K

 **9.ORDER APRIL 2024 RERA ATS (1).pdf**
1235K

 **COD-Inprincipal-Hasta.pdf**
942K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: prof.vijyant.agarwal@gmail.com

17 May 2026 at 18:28



Address not found

Your message wasn't delivered to **prateek.verma@homekraft.in** because the address couldn't be found or is unable to receive email.

LEARN MORE

 This link will take you to a third-party site

The response from the remote server was:

550 5.4.1 Recipient address rejected: Access denied. For more information see <https://aka.ms/EXOSmtpErrors> [PN2PEPF0000018F.INDPRD01.PROD.OUTLOOK.COM 2026-05-17T12:58:10.293Z 08DEADC8DC60AF1A]

Final-Recipient: rfc822; prateek.verma@homekraft.in
Action: failed
Status: 5.4.1
Remote-MTA: dns; [homekraft-in.mail.protection.outlook.com](https://aka.ms/EXOSmtpErrors). (2a01:111:f403:cc2d::1, the server for the domain [homekraft.in](https://aka.ms/EXOSmtpErrors).)
Diagnostic-Code: smtp; 550 5.4.1 Recipient address rejected: Access denied. For more information see <https://aka.ms/EXOSmtpErrors> [PN2PEPF0000018F.INDPRD01.PROD.OUTLOOK.COM 2026-05-17T12:58:10.293Z 08DEADC8DC60AF1A]
Last-Attempt-Date: Sun, 17 May 2026 05:58:10 -0700 (PDT)

 **noname**
5K

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4 attachments



Thumbnail description: A yellow banner with text, likely a notice or announcement.



WEBPAGE_CHANGE_OF_DEVELOPER.jpeg
139K



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Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: prof.vijyant.agarwal@gmail.com

24 May 2026 at 18:21



Address not found

Your message wasn't delivered to **rera@hareraggm.gov.in** because the address couldn't be found or is unable to receive email.

The response from the remote server was:

550 5.1.1 : Recipient address rejected: hareraggm.gov.in

Final-Recipient: rfc822; rera@hareraggm.gov.in
Action: failed
Status: 5.1.1
Remote-MTA: dns; mail.hareraggm.gov.in. (103.35.123.37, the server for the domain hareraggm.gov.in)
Diagnostic-Code: smtp; 550 5.1.1 <rera@hareraggm.gov.in>: Recipient address rejected: hareraggm.gov.in
Last-Attempt-Date: Sun, 24 May 2026 05:51:58 -0700 (PDT)

 **noname**
5K

----- Forwarded message -----
From: **Vijyant Agarwal** <prof.vijyant.agarwal@gmail.com>
Date: Sun, 17 May 2026 at 13:39
Subject: Representation / Objection Regarding Non-Service of Individual Notice and Non-Disclosure of Revised Sanctioned Plans of the project GRANDSTAND sector 99A ,Gurugram
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Cc: <soibal.gupta@outlook.com>, Soibal Gupta <adv.soibal.gupta@gmail.com>

[Quoted text hidden]

4 attachments



Website screenshot for Change of Developer



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